

Form No. INC-33

e-MOA (e-Memorandum of Association)

[Pursuant to Schedule I (see Sections 4 and 5) to the Companies Act, 2013]



Form language

☒ English

☐ Hindi

Refer instruction kit for filing the form

All fields marked in * are mandatory

* Table applicable to company as notified under schedule I of the Companies Act, 2013

(A - MEMORANDUM OF ASSOCIATION OF A COMPANY LIMITED BY SHARES

B - MEMORANDUM OF ASSOCIATION OF A COMPANY LIMITED BY GUARANTEE AND NOT HAVING A SHARE CAPITAL

C - MEMORANDUM OF ASSOCIATION OF A COMPANY LIMITED BY GUARANTEE AND HAVING A SHARE CAPITAL

D - MEMORANDUM OF ASSOCIATION OF AN UNLIMITED COMPANY AND NOT HAVING SHARE CAPITAL

E - MEMORANDUM OF ASSOCIATION OF AN UNLIMITED COMPANY AND HAVING SHARE CAPITAL)

A - MEMORANDUM OF
ASSOCIATION OF A COMPANY
LIMITED BY SHARES

Table A/B/C/D/E

1 The name of the company is

MONEYGATE TECHNOLOGY
PRIVATE LIMITED

2 The registered office of the company will be situated in the State of

Karnataka

3 (a) The objects to be pursued by the company on its incorporation are:

1. To do financial transaction processing and settlement activities including electronic and virtual payment systems services, e-wallets, mobile-wallets, cash card, payment gateways services, prepaid and postpaid payment instruments payment systems including open/ closed/ semi closed systems payment instruments, in India and abroad including all kinds of payment services in any manner whatsoever

(b) *Matters which are necessary for furtherance of the objects specified in clause 3(a) are

1. To undertake commercial obligations, transactions and operation of all kinds, for the purpose of carrying on the main objects of the company.

2. To bring foreign investment in the Company through permissible routes in India to carry out the main business activity or to fund the expansion plans and any other plans of the Board.

3. To undergo capital, and/or structural restructuring including

but not limited compromise, arrangement, merger, demerger, amalgamation, takeover, acquisition, etc.

4. To enter into all sorts of arrangements and/or agreements for use of technology and sourcing of technology for the successful conduct of business activity of the Company.

5. To secure, sell, purchase, acquire contact numbers, directory details, invitee lists or any other similar data for the business activity of the Company.

6. To grant and/or guarantee loans or advances to any company, association or concern engaged in any industry, trade or business or to assist in its development or expansion or to enable it to undertake and start new ventures approved by the Company.

7. To pay all costs, charges and expenses incurred or sustained on account of the promotion and establishment of the Company or which the company will consider to be in the nature of preliminary expenses.

8. To purchase take on lease, in exchange on hire or otherwise acquire any real and personal property and in particular any land building, easements, machinery, plant and stock-in-trade for the objects of the Company.

9. To sell or otherwise dispose of let on lease or on hire, or transfer the business property, projects, factories or industrial or other undertakings of the Company or any part thereof to any other company association or concern for cash, stock or shares or for any other consideration which the company may see fit to accept, on such, terms and conditions as may be determined by the company.

10. To borrow or raise for business purposes, money by way of cash, credit overdraft, discount, bond, mortgage, debenture stock deposits, bill, promissory note, hundies, receipts or in any other manner and to grant security to dispose mortgage and charge the whole or any part of the property and assets and revenue of the Company including uncalled capital and to dispose, transfer and convey the same absolutely or in trust, with the usual power of sale to lenders and creditors and also to raise money by the issue of mortgage debenture or debentures of preference stock or convertible debentures or bonds and purchase, redeem and pay off any such securities.

11. To purchase, take on lease or tenancy or in exchange, hire, take options over or otherwise acquire any estates including estates on all or any part on which tea, coffee, rubber and other plants, trees, or crops have been or may be planted, or interest whatsoever and to hold develop, plant improve, manage, work cultivate, deal with and turn to account concessions, grants, decrees, licenses, privileges, claims, options, leases property, real or personal or rights or powers of any kind which may appear to be necessary or convenient for the attainment of the main objects of the Company and to purchase, charter, hire, build or otherwise acquire crafts, vehicles of any or every short or description for use on or under land or water or in the air to employ the same in connection with business of the company.

12. To guarantee the payment of money unsecured or secured or payable under or in respect of promissory notes, bonds, debentures, debenture stock contracts, mortgages, charge, obligations, instruments and securities of any company or of any authority, supreme

municipal, local or otherwise or of any person whomsoever, whether incorporated or not incorporated, and generally to guarantee or become sureties for the performance of any contracts or obligations as beneficiary for the purpose of the company.

13. Subject to the provision of the Act and directions issued by R.B.I. from time to time in this behalf, to receive money on deposit or loan and borrow or raise money in such manner as the company may think fit including by issue of debentures or debentures stock (perpetual or otherwise) and to secure the payment of any money borrowed, raised or owing by mortgage, charge or lien upon all or any of the property or assets of the company (both present and future) including its uncalled capital and goodwill and also by a similar mortgage, charge or lien to secure any guarantee the performance by the company or any other person or company of any obligation undertaken by the company but not amounting to Banking Business, as defined under the Banking Regulation Act, 1949.

14. To become member of any chamber of commerce, association and federation thereof or to enter into any arrangement with any person, institution, association, firm or company carrying on or which may carry on research and other scientific work or investigation in connection with the electronic trade or industry or other trades or industries allied there-with or ancillary thereto or other trade or industry in which the company is engaged and to acquire shares in any such institution, association or company and contribute towards the capital of funds thereof.

15. To open account or accounts with any Bank and to pay into and to withdraw money from such account or accounts.

16. To acquire and undertake all or any part of the business, property, liabilities of any person or partnership firm, company, body corporate or any other organization, whether incorporated or not, carrying on or proposing to carry on business which this company is authorised to carry on or possessed of property suitable for the purpose of the company or which can be carried on in conjunction therewith or which is capable of being conducted so as directly or indirectly to benefit of the company.

17. To enter into any Partnership or into any arrangement for joint ventures, sharing profits, union of interest, co-operation, reciprocal concession or otherwise with any person, firm or Company carrying on or engaged in or about to carry on or engage in any business or transaction which the Company is authorised to carry on or engaged in business or transaction capable of being conducted so as directly or indirectly to benefit the Company and to take or otherwise acquire and hold hares and/or stocks in any such Company.

18. To enter into any contracts or arrangements for the more efficient conduct of the business of the Company or any part thereof and to sublet any contracts from time to time

(i) To negotiate and/or enter into agreements and contracts with individuals, companies, corporations, bodies corporate and/or such other organisations in India and abroad including governments and governmental or semi-governmental bodies of other sovereign states, for obtaining or providing know-how or technical and/or financial collaboration or any other such assistance for carrying out any

business or transactions which the Company is authorised to carry on and also for the purpose of activating research and development and to acquire or provide, exploit, use necessary formulae inventions, utility models and patent rights for furthering the objects of the Company.

(ii) Subject to provisions of Chapter XV and Section 230 to 240 of the Companies Act, 2013, to amalgamate or take over or merge with or reconstruct the business of the Company with any other person, organization, firm, company, body corporate whether incorporated or not and whether registered in India or otherwise, or enter into partnership or into any other arrangement for sharing of profits, union of interest, co-operation, joint venture, reciprocal concession or co-operation or for limiting competition or otherwise, with any person, persons or company or body corporate or other organizations whether incorporated or not, carrying on or engaged in or about to carry on, or engage in or being authorized to carry on or to bifurcate one or more units of the Company in one or more companies for the interest of the Company and to give or accept by way of consideration for any of the acts or things aforesaid or property acquired, any shares, debentures, debenture-stock or other debt instruments or securities including futures, options, derivatives that may be agreed upon, and to hold and retain, sell, mortgage, pledge, encumber and deal with any shares, debentures, debenture-stock or securities, options, futures, derivatives, instruments so received or offered.

19. To pay for any lands, business, property or assets or rights acquired by the Company, wholly or partially in shares, debentures or other

securities or obligations of the Company and whether fully or partly paid and as part of the terms of any such purchase.

20. To institute conduct, defend, compound or abandon any legal proceedings by or against the company or its officers or otherwise concerning the affairs of the company and also to compound and allow time for payment or satisfaction of any debts due and of any claims or demands by or against the company to arbitration, law courts and observe and perform the awards.

21. To establish, provide, maintain and conduct research laboratories and experimental workshops for scientific, technical or research experiments and to undertake directly or in collaboration with other agencies scientific and technical research, experiments and tests of all kinds.

22. To employ, engage, accept experts, consultants, Indian or Foreign in connection with the business of the Company and pay them in any manner, including by issue of stock/ shares of the Company.

23. To train or pay for the training in India or abroad of any of the Company's employees or any person in the interest of or for furtherance of the company's objects.

24. To import and purchase any machinery, implements, materials, articles and stores and to do all things for developing the resources of the property, estates and lands in such manner as the company may think best.

25. To acquire from any person, firm or body corporate or unincorporated whether in India or elsewhere technical information, know-how, processes, engineering manufacturing and operating

data plans, layouts and blue prints useful for the design, erection and operation of plants, equipments, accessories, apparatus required for attaining the main objects of the company and to acquire any grant or licence and of the rights and benefits in connection therewith

26. To lend and advance money, either with or without security and give credit to such persons (including Government) and upon such terms and conditions as the company may think fit, shall not carry on any business of banking.

27. To apply for, purchase or otherwise acquire and protect, prolong and renew in any part of the world, any trademarks, patents, patent rights, brevets d' inventiontrademarks, designs, licenses, protection, concessions and the like conferring any exclusive or nonexclusive or limited rights to their use or any secret or other information as to any invention, process or privilege which may seem capable of being used for any of the purpose of the company or the acquisition of which may seem calculated directly or indirectly to benefit the company and to use exercise, develop or grant licences or privileges in respect of, or otherwise turn to account, the property, rights and information so acquired.

28. To establish and support or aid in the establishment and support of associations, institutions gratuities funds, other funds, trusts and concessions calculated to benefit the company, directly or indirectly or employees or ex-employees of the company or its predecessors in business or the dependents or connections of such persons and to grant persons, allowances gratuities and bonuses and to make payments towards insurance.

29. To form, incorporate or

promote any company or companies, whether in India or elsewhere having amongst its or their objects the acquisition of all or any or the assets or control or development of the company or any other objects which in the opinion of the company could or might directly or indirectly assist the company in the development of its properties or otherwise prove advantageous to the company and to pay all of the costs and expenses incurred in the connection with any such promotion or incorporation and to remunerate any person or company in any manner it shall think fit for services rendered or to be rendered.

30. To enter into, make and perform contracts of every kinds with any person, firm association, corporation municipality, forest and land owners, country, state, body, political or government and guarantee the performance of contracts and undertaking and also guarantee payment of money and debts.

31. To appoint attorneys and agents whether by commission or otherwise and constitute agencies and sub-agencies of the company in India or elsewhere

32. To undertake and execute any Trusts, the undertaking of which may seem to benefit the Company either gratuitously or otherwise.

33. To establish and maintain or procure to establishment and maintenance of any contributory or non-contributory pension or superannuation funds for the benefit of and give or procure the giving of donations, gratuities, pensions, allowances or emoluments to any persons who are or where at any time in the employment or service of the company.

The liability of the member(s) is limited
The liability of the member(s) is Unlimited

5 Every member of the company undertakes to contribute:

(i) to the assets of the company in the event of its being wound up while he is a member, or within one year after he ceases to be a member, for payment of the debts and liabilities of the company or of such debts and liabilities as may have been contracted before he ceases to be a member; and

(ii) to the costs, charges and expenses of winding up (and for the adjustment of the rights of the contributories among

themselves), such amount as may be required, not exceeding * rupees.

(iii) The share capital of the company is rupees, divided into

Equity Share	Shares of	10	Rupees each	and	100000
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☒ We, the several persons, whose names and address are subscribed, are desirous of being formed into a company in pursuance of this memorandum of association, and we respectively agree to take the number of shares in the capital of the company set against our respective names:

☐ I, whose name and address is given below, am desirous of forming a company in pursuance of this memorandum of association and agree to take all the shares in the capital of the company:

☐ We, the several persons, whose names and addresses are subscribed, are desirous of being formed into a company in pursuance of this memorandum of association:

Subscriber Details					
S. No.	*Name, Address, Description and Occupation	DIN / PAN / Passport number	No. of shares taken	DSC	Dated
1	Name: MANOJ DEWANGAN Father Name :DEENDAYAL DEWANGAN. Address: FALTNO. 09,3rd floor, p-190, DUM DUM PARKBANGUR AVENUE, JESSOR ROAD WEST BENGAL, 700055 Occupation: Business	07868291	40000 Equity,0 Preferenc	MANOJ DEWANGAN AN Digitally signed by MANOJ DEWANGAN Date: 2023.09.07 15:51:27 +05'30'	05/09/2023
2	NAME: MAMTA SAHU Father?s Name: DEENDAYAL DEWANGAN Address: HANUMAN MANDIR KE BAJU, BRAMHAPURI, PURANI BASTI, TATYA PARA ROAD, RAIPUR (CG) 492001. Occupation: Business	HOTPS2706R	60000 Equity,0 Preferenc	MAMTA SAHU SAHU Digitally signed by MAMTA SAHU Date: 2023.09.07 15:54:38 +05'30'	05/09/2023
Total shares taken			100000 Equity,0 Preference		

Signed before me

Membership type of the witness (ACA/FCA/ACS/FCS/ ACMA/FCMA)	*Name of the witness	*Address, Description and Occupation	DIN / PAN / Passport number / Membership number	DSC	Dated
ACS	ROSHNI KUMARI GUPTA	Address: 85 G T ROAD HOWRAH-711101. Occupation: PCS, MEM NO. 51189, COP 26202	51189	ROSHNI KUMARI GUPTA Digitally signed by ROSHNI KUMARI GUPTA Date: 2023.09.07 15:54:49 +05'30'	05/09/2023

7 Shri / Smt

Of

resident of

aged

years shall be the nominee in the event of death of the sole member.